For this to happen, some serious reforms will need to be undertaken.

Establish an Independent Environment Ministry

Climate change is global. India cannot act alone to bring GHGs under requisite levels to contain global warming. The lead in this matter domestically and internationally has to be taken by the Government of India. States will need to work with the Centre on this front more as implementation agencies. Tackling climate change will necessitate reforms in economic policies and regulation of CO_2 and other GHG emissions. This can be done only under the leadership of the Government of India. Therefore, the subject of 'Climate Change and Control of Greenhouse Gases' should be included as a separate entry in the Union List or be interpreted as part of the Residual Entry in the Union List.

The primary way to control pollution of air, land and water is to control the use of polluting chemicals and fuels in workplaces, factories, vehicles and households; fix emission/discharge standards; and develop means to ensure observance of these standards. There are millions of workplaces and households. The control of actions of these millions of agents has to take place at the local level: in villages and cities, workplaces and households, and vehicles of all types. This can only be done by state governments and their agencies.

There is no specific entry in the Seventh Schedule relating to pollution control. However, various places where pollution originates (agriculture, industry, power generation) are mentioned in the lists. Likewise, impacts of pollution, like public health, are also specifically mentioned.

Pollution control has assumed extraordinary importance over the past three to four decades. It is as important as public health or industrial development. Therefore, it is advisable to include 'Pollution Control' in the Concurrent List to enable both the Centre and the states to act.